



Cover story

TOUGHENING THE LAW

The legal framework needs to be hardened to make the perpetrators of terror pay heavily

ISSUE

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The UPA government dithered over strengthening the law dealing with terrorists but after the Mumbai attacks it swiftly readdressed some of the anomalies. Parliament has passed the National Investigation Agency Bill 2008 and amended the Unlawful Activities (Prevention) Act (UAPA) with a broad unanimity. The amendments may put some breeze on the back of law enforcement agencies but we still lack a comprehensive legal framework to defend against, prevent and punish terrorism. Our laws still, it seems, are a step behind the terrorists' parade.

The two acts have many common provisions as the Prevention of Terrorism Activities Act (POTA) which was repealed in 2004. Like the POTA, the new laws ensures that the terror suspects can be held without charges for up to 180 days and police custody can be stretched up to 30 days. But at the same time, the new laws also make a maiden reference to use of radioactive, nuclear or other substances for terrorist activities. In the Rajiv Gandhi assassination case, the Supreme Court held that it was difficult to establish that the assassination was carried out with a plan to 'overawe the state' as stated under TADA. UAPA revisits the issue by

defining terrorist act as attempt to "overawe by means of criminal force or causing death of any public functionary".

The National Investigative Agency (NIA) set up with much fanfare needs to be strengthened to meet the new challenges. Armed with powers only to investigate terror cases, the fangless body is at risk of being reduced to a glorified police force, not much different from a special cell of Delhi Police or an Anti-Terror Squad of Mumbai. The NIA should be given charge of investigating all terror-related activities like funding, hawala transactions, fake currency, drug trafficking and misuse of communication equipment like the internet and satellite phones.

However, the national mood that existed while Parliament legislated the new terror law withered away when various BJP-run states came out against NIA saying that it was against the principles of a federal state. Gujarat Chief Minister Narendra Modi said that the setting up of the NIA was "an attempt at sidetracking" the states in the fight against terror. Incidentally, even the CPI(M)-run Government in Kerala joined Modi in attacking the Centre.

While implementing our policies and setting up plank to fight terrorism, we should achieve both the coveted goals



MUMBAI ATTACKER AJMAL AMIR KASAB AT THE CS TERMINUS

AP PHOTO/MUMBAI MIRROR, SEBASTIAN D'SOUZA

of liberty and security to an appreciable degree. There are at least two differences in the amended UAPA which bring both bouquets and brickbats from civil rights and legal activists. Unlike in POTA, UAPA does not admit confessions before a police officer as an evidence. Secondly, while POTA required the courts to take certain evidence as "adverse inference" against the accused with possession of arms, UAPA directs the court to presume the accused as guilty unless proved otherwise. Also, POTA provided for review committees to assess each case; this safeguard against misuse is missing in the new UAPA.

Many are of the opinion that the Government's claim that at no point it will impinge on the civil liberties of the citizens rings a hollow sound. Amnesty International has appealed to President Pratibha Patil not to approve the legislation, which would double the number of days police can detain terror